

Public Roads Act, 1974

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Public Road Act, 2031 (1974)

Royal Seal and Publication Date

2031.6.20.1

Amending Acts

1. Public Road (First Amendment) Act, 2035 (1978) 2035.5.21
2. Public Road (Second Amendment) Act, 2046 (1989) 2046.7.11
3. Administration of Justice Act, 2048 (1991) 2048.2.16

Certification and Publication Date

4. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (2009) 2066.1.07
5. Some Nepal Acts Amendment Act, 2072 (2015) 2072.11.13
6. Some Nepal Acts Amendment Act to Make Conformity with the Constitution of Nepal, 2075 (2018) 2075.11.19

Act No. 21 of the Year 2031 (1974)

An Act Made to Provide for Construction, Maintenance and Expansion of Public Roads

Preamble: Whereas, it is expedient to classify all types of public roads, to acquire land required for their construction, maintenance, expansion or improvement, to provide for the distribution of reasonable compensation therefor, and also to make provision for the collection of development tax from the owners of land adjacent to the road who benefit from the public road, in order to maintain the convenience and economic interest of the general public;

Now, therefore, His Majesty King Birendra Bir Bikram Shah Dev has enacted this Act on the advice and with the consent of the National Panchayat. Chapter 1

Preliminary

1. Short Title, Extent and Commencement: (1) This Act may be called the "Public Road Act, 2031 (1974)".
(2) This Act shall extend to the whole of Nepal Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066..
(3) Chapter 4 of this Act shall come into force in the specified area or region from the date appointed by the Government of Nepal by notification published in the Nepal Gazette, and the other sections shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-
(a) "Public Road" means a road which is not in the private use of anyone, and the term also includes all types of bridges, causeways, culverts, Added by the Second Amendment. cycle paths and footpaths on such road.

(b) "Road Boundary" means the public road and the area of land on the left and right of the center line of such road specified pursuant to Section 3.

(c) "Land" means any land, and the term also includes huts, houses, buildings, trees, etc., situated on such land and things permanently attached thereto.

(d) Amended by the First Amendment. "Local Authority" means the authority appointed by the Government of Nepal, and if no such authority is appointed, it means the Chief District Officer.

(e) "Road Department" means the Road Department of the Government of Nepal.

(f) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act.

Chapter 2

Classification of Public Roads, Road Boundary and Acquisition of Land

3. Classification of Public Roads and their Road Boundary: The Government of Nepal shall, by notification published in the Nepal Gazette, classify the public roads as follows and specify the road boundary on both the left and right sides from the center line of such road, not exceeding thirty-one meters. Provided that, for the entire length of the same type of road, due to topography and settlement, such road boundary may be Amended by the Second Amendment. reduced, or necessary boundaries including four boundaries may be fixed for the safety of bridges and the riverbank around the bridge.

(a) Highway,

(b) Feeder Road,

(c) District Road, and

(d) Urban Road. 3A. Added by the First Amendment. Prohibition of Building Construction, etc., within Prescribed Distance: (1) Where a road boundary has been specified pursuant to Section 3, the Government of Nepal may, by notification published in the Nepal Gazette, prohibit any person from constructing any type of permanent structure or building, except a boundary wall, within the distance prescribed not exceeding 6/6 meters from the road boundary, or if the road boundary has not been specified, from the edge of the public road. Added by the Second Amendment. Provided that in areas where urban development plans are in force, it shall be as per the provisions of the prevailing Nepal law relating thereto.

(2) If any person constructs any type of permanent structure or building within the distance prohibited pursuant to Sub-section (1), such structure or building may be demolished by order of the Road Department. The expenses incurred in demolishing such structure or building may also be recovered from the concerned person by the Road Department. 3B. Added by the Some Nepal Acts Amendment Act to Make Conformity with the Constitution of Nepal, 2075. Classification of Roads: The Government of Nepal may, by notification published in the Nepal Gazette, classify roads as follows:-

(a) National Highway,

(b) Provincial Highway,

(c) Local Road,

(d) Rural Road,

(e) Urban Road,

(f) Agricultural Road, and

(g) Other roads as prescribed. 4. Amended by the First Amendment. Acquisition of Land for Public Road and Road Boundary: If it is necessary to acquire any land for the construction, expansion or improvement of a

public road or for the purpose of the road boundary, the Government of Nepal may acquire land in accordance with the prevailing law relating to land acquisition. 5. Repealed by the First Amendment. 6. Repealed by the First Amendment. 7. Repealed by the First Amendment. 8. Repealed by the First Amendment. 9. Repealed by the First Amendment. 10. Repealed by the First Amendment. 11. Repealed by the First Amendment. 12.

Repealed by the First Amendment. 13. Repealed by the First Amendment. Chapter 3 Supervision, Maintenance and Other Provisions Relating to Public Roads 14. Acquisition of Other Land During Road Construction, Expansion or Improvement: (1) Until the work of construction, expansion or improvement of a public road is completed, the Road Department may temporarily acquire any land for the following purposes:- (a) For storing construction materials and equipment necessary for the construction, expansion or improvement of such road, or for building houses or sheds for persons supervising or controlling such construction, expansion or improvement work, (b) To maintain traffic on such road until the construction, expansion or improvement work is completed, or to construct a temporary separate road required for transporting materials or equipment related thereto until the construction is completed. (2) For the purpose mentioned in Sub-section (1), except in special circumstances, the following houses or land shall not be acquired:- (a) A house, hut or building used by any person for his residence, (b) Land being used for a temple, school, hospital, rest house or orphanage. (3) After the work for which the land acquired under Sub-section (1) was acquired is completed, such land shall, as far as possible, be returned to the concerned landowner or his successor in the same condition as at the time of acquisition. 15.

Compensation for Acquired Land and its Determination: (1) Except in the following circumstances, no compensation shall be paid for the acquisition of any land under Section 14:- (a) For the acquisition of any land including a house, hut or building, compensation for the loss of the owner of such house, hut or building due to being unable to use it, (b) If any land is acquired exceeding the sowing time for crops, the loss suffered by the concerned landowner due to not being able to cultivate such crops, (c) The amount which the person receiving back such land has to bear to restore the land to its condition at the time of acquisition due to the construction of a temporary road or the placement of construction materials on the acquired land. (2) The amount of compensation under Sub-section (1) shall be determined as follows:- (a) If there is an agreement between the Road Department and the concerned landowner, according to that agreement, (b) If no agreement can be reached under Clause (a), it shall be determined by arbitration, and for that purpose, the following arbitrators shall be:- Amended by the Some Nepal Acts Amendment Act, 2072.(1) A member of the concerned Municipality designated by the Mayor, or the Chairperson of the concerned Rural Municipality, (2) The Chief District Officer, and (3) The Head of the Land Administration Office or the Revenue Office. 16. Planting Trees on the Left and Right of the Road and their Maintenance: (1) Amended by the Some Nepal Acts Amendment Act to Make Conformity with the Constitution of Nepal, 2075. The Road Department, the concerned Provincial Government, Rural Municipality or Municipality shall plant trees on the left and right of the public road as necessary. (2) The duty of maintenance and protection of the trees planted under Sub-section (1) shall be of the concerned Amended by the Some Nepal Acts Amendment Act, 2072. Rural Municipality or Municipality. (3) The responsibility for trimming the trees planted under Sub-section (1) or removing them if they obstruct traffic shall vest in the Amended by the Some Nepal Acts Amendment Act to Make Conformity with the Constitution of Nepal, 2075. Road Department, the concerned Provincial Government, Rural Municipality or Municipality. Added by the Second Amendment.(4) Notwithstanding anything contained in Sub-sections (1), (2) and (3), the Road Department may cause the works mentioned in those sub-sections to be done by any other person or entity as prescribed. Added by the Second Amendment.16A.

Determination of Weight Limit: The Government of Nepal may, by notification published in the Nepal Gazette, specify the weight limit that a public road can bear and prohibit the operation of vehicles exceeding such specified weight limit on such public road.

17. Taking Soil, Stone or Sand from Adjacent Land: (1) If it is necessary to take soil, stone or sand from any adjacent land for the construction, repair or maintenance of a public road, soil, stone or sand may be taken in the required quantity as directed by the Road Department. If any crop, tree, plant or other thing is damaged while taking soil, stone or sand from such land, compensation shall be paid. Added by the First Amendment. If a pit is created while taking soil, stone or sand from such land, compensation for the amount required to fill such pit shall be paid. (2) Notwithstanding anything contained in Sub-section (1), if soil, stone or sand must be taken from land immediately adjacent to a house, soil, stone or sand shall not be taken from such land without obtaining the consent of the concerned house owner.

18. Power to Remove Goods Obstructing Traffic on Public Road: (1) If any person abandons, keeps or throws any goods on a public road, thereby causing any obstruction to the traffic on such road, the Amended by the Some Nepal Acts Amendment Act to Make Conformity with the Constitution of Nepal, 2075. Road Department, the concerned Provincial Government, Rural Municipality or Municipality may issue an order in the name of the concerned person specifying a reasonable period for the removal of such goods. (2) If the goods are not removed within the period specified in the order issued under Sub-section (1), or if the owner is not found, the Amended by the Some Nepal Acts Amendment Act to Make Conformity with the Constitution of Nepal, 2075. Road Department, the concerned Provincial Government, Rural Municipality or Municipality may have the goods placed at the side of the road or taken elsewhere to be kept in its custody. (3) Notwithstanding anything contained in Sub-section (1), if any goods abandoned, kept or thrown on a public road completely obstruct the traffic on such road, the Amended by the Some Nepal Acts Amendment Act to Make Conformity with the Constitution of Nepal, 2075.

Road Department, the concerned Provincial Government, Rural Municipality or Municipality shall have the right to immediately remove such goods from the road.

(4) If, apart from the goods mentioned in Sub-section (1), any thing or door or tree branch or creeper or wire placed, fixed or built protruding towards the road from any house or wall to the left or right of the public road is found to obstruct the traffic on such road, the Amended by the Some Nepal Acts Amendment Act to Make Conformity with the Constitution of Nepal, 2075. Road Department, the concerned Provincial Government, Rural Municipality or Municipality may issue an order in the name of the concerned person specifying a reasonable period to remove such obstruction or to adjust it so as not to cause obstruction, and such order may also specify the manner of keeping, building or fixing the concerned thing or door and the height to be maintained after trimming the tree or creeper. Provided that, if any thing or door built or existing before the commencement of this Act needs to be removed, compensation therefor shall be paid, and if any alteration is required, the expenses incurred therefor shall be borne by the Amended by the Some Nepal Acts Amendment Act to Make Conformity with the Constitution of Nepal, 2075. Road Department, the concerned Provincial Government, Rural Municipality or Municipality.

(5) A person who is unable to do the work mentioned in the order within the period specified in the order issued under Sub-section (4) and wishes to extend the period may submit an application stating the reasons to the Amended by the Some Nepal Acts Amendment Act to Make Conformity with the Constitution of Nepal, 2075. Road Department, the concerned Provincial Government, Rural Municipality or Municipality, and in such case, the Road Department may extend the period once for as long as deemed necessary.

(6) If the work mentioned in the order is not done within the period specified under Sub-section (4) or if extended within the period extended under Sub-section (5) as well, the Amended by the Some Nepal Acts

Amendment Act to Make Conformity with the Constitution of Nepal, 2075. Road Department, the concerned Provincial Government, Rural Municipality or Municipality may deploy its employees or any other person to carry out the work mentioned in such order. Added by the First Amendment. In such case, the concerned person shall not be entitled to claim compensation or expenses as per the proviso to Sub-section (4). Amended by the Second Amendment.¹⁹

Not to Do Any Work on Public Road or Road Boundary Without Permission: (1) Without obtaining permission from the Road Department, no person shall construct an approach road connecting to a public road, dig or break a pit or drain within the public road or road boundary, erect or place poles, posts, fences, etc., or build a house, hut or shed, or cultivate land within the road boundary, or do any other similar act. (2) If any person does any act mentioned in Sub-section (1) without obtaining permission from the Road Department, the Road Department may, while also initiating any other proceedings against such person under other sections of this Act if necessary, issue an order in the name of such person specifying a reasonable period to close the approach road built without permission, fill the pit or drain dug, uproot or remove the poles, posts, fences, etc., erected or placed, or demolish the house, hut or shed built, or vacate the land cultivated. (3) If the concerned person does not comply with the order issued under Sub-section (2), the Road Department may close the approach road built by such person, fill the pit or drain dug, uproot or remove the poles, posts, fences, etc., erected or placed, demolish the house, hut or shed built, or vacate the land cultivated, and the Road Department may recover the expenses incurred therefor from the concerned person. 20. **Right to Require Deposit or Collect Fee:** (1) If any person needs to dig or break a public road or road boundary for any work, permission must be obtained from the Road Department, and upon application for such permission, the Road Department may, after making necessary inquiry, grant permission upon taking a deposit of the amount of expenses required to repair the public road or road boundary so dug or broken and restore it to its original condition. (2) When granting permission to dig a public road or road boundary under Sub-section (1), the method to be adopted for digging such road or road boundary or other conditions to be observed until the work for which the digging is done is completed may be specified, and if deemed necessary, the Road Department may also have a written undertaking obtained from the person requesting permission that he will comply with such conditions. 21. Omitted by the Some Nepal Acts Amendment Act to Make Conformity with the Constitution of Nepal, 2075.

Power to Recover Expenses: (1) The expenses incurred by the Amended by the Some Nepal Acts Amendment Act to Make Conformity with the Constitution of Nepal, 2075. Road Department, the concerned Provincial Government, Rural Municipality or Municipality in clearing goods abandoned or kept on the road pursuant to Sub-section (2) of Section 18, or in carrying out any work pursuant to Sub-section (6) of the same section, may be recovered from the concerned person. (2) The Amended by the Some Nepal Acts Amendment Act to Make Conformity with the Constitution of Nepal, 2075. Road Department, the concerned Provincial Government, Rural Municipality or Municipality shall issue a notice in the name of the concerned person specifying a period of thirty-five days for payment of the amount to be recovered under Sub-section (1). If the amount is not paid within that period, or no request for extension is made, proceedings shall be initiated for recovery as a government due. (3) If the Amended by the Some Nepal Acts Amendment Act to Make Conformity with the Constitution of Nepal, 2075. Road Department, the concerned Provincial Government, Rural Municipality or Municipality has taken under its control any goods abandoned or kept so as to obstruct traffic on a public road, such goods may be detained until the expenses incurred by Amended by the Some Nepal Acts Amendment Act to Make Conformity with the Constitution of Nepal, 2075. such Department, Government, Rural Municipality or Municipality in clearing or removing such goods are recovered. If such expenses are not recovered within one year, or if the owner of such goods is not found,

such goods shall escheat to the Government of Nepal. Chapter 4 Provisions Relating to Development Tax

22. Power to Levy and Collect Development Tax: The Government of Nepal may levy and collect a development tax once on land situated on the left and right of a road constructed after this Act comes into force.

23. Land Subject to Development Tax and its Division into Sections: Amended by the First Amendment. (1) If a road boundary has been specified, land within the road boundary, and if not specified, land up to two hundred fifty meters on both sides from the edge of the road, shall be subject to development tax.

Provided that land falling within the distance prescribed for prohibiting construction of any permanent structure or building under Section 3A shall not be subject to development tax.

(2) For the purpose of determining the rate of development tax, the land under Sub-section (1) shall be divided into sections of 125 meters and classified as follows:-

(a) Section of land up to 125 meters: "Section A",

(b) Section of land from 125 meters to 250 meters: "Section B".

24. Determination of Development Tax: (1) When land is acquired under Section 5, in the area or locality where such land was valued and compensation paid, the amount equal to the following percentages of the same value shall be recovered as development tax:-

(a) For land in Section A: 20 percent,

(b) For land in Section B: 10 percent. Example:- If, upon acquiring land in one area, the value of one ropani of land was fixed at Rs. 5000 and compensation distributed, and a person liable to pay development tax in that area has a total of one and a half ropani of land, of which half a ropani falls in Section A and one ropani falls in Section B, then the amount of development tax payable by him under this section shall be as follows:-

For half a ropani of land in Section A @ 20 percent: Rs. 500/-

For one ropani of land in Section B @ 10 percent: Rs. 500/-

Total Rs. 1000/-

(2) Notwithstanding anything contained in Sub-section (1), if the Government of Nepal, taking into consideration the location of any land or for any other reason, deems it necessary to reduce the rate of development tax chargeable on such land or to exempt such land from development tax, the Government may, by notification published in the Nepal Gazette, reduce the rate or grant exemption. In relation to such reduction or exemption, the Government of Nepal shall also take into consideration the recommendation of the Compensation Determination Committee.

25. Period and Office for Paying Development Tax: (1) The development tax payable under this Act shall be paid in installments as prescribed to the prescribed office. Provided that if any person wishes to pay the entire amount of development tax payable by him in a lump sum, nothing in this section shall be deemed to prevent him from doing so.

(2) The period for paying development tax and other related procedures shall be as prescribed.

26.

Non-Payment of Development Tax to be Recovered as Land Revenue Arrears: (1) If any person fails to pay the development tax within the period under Section 25, proceedings shall be initiated for recovery as in the case of arrears of land revenue under prevailing Nepal law. (2) When initiating proceedings for non-payment of development tax under Sub-section (1), if the concerned land is required to be auctioned, notwithstanding anything contained in any prevailing Nepal law, such land shall be auctioned only after obtaining the approval of the Ministry of Construction and Transport of the Government of Nepal.

Chapter 5 Miscellaneous Amended by the First Amendment.

27. Authority for Determining Compensation and Appeal Thereagainst: (1) The

amount of compensation to be paid under Sub-section (4) of Section 17 or Sub-section (4) of Section 18 shall be as determined by the Amended by the Some Nepal Acts Amendment Act to Make Conformity with the Constitution of Nepal, 2075. Road Department or the Provincial Government in the presence of the concerned ward member of the local Amended by the Some Nepal Acts Amendment Act, 2072. Rural Municipality or Municipality. (2) A person dissatisfied with the compensation determined under Sub-section (1) may appeal to the Government of Nepal within thirty-five days from the date of receipt of notice of such compensation. Amended by the First Amendment.28. Land Acquisition Not to be Hindered by Appeal: (1) The mere filing of an appeal regarding compensation under Sub-section (2) of Section 27 shall not hinder the acquisition of land for any work under this Act. 29. Government Office to Give Notice if it Needs to Dig Road: If any office of the Government of Nepal needs to dig a public road or road boundary for any work, it shall dig only after obtaining prior permission from the Amended by the Some Nepal Acts Amendment Act, 2072. Road Department, and if the Road Department has specified any method or condition regarding such digging of the road or road boundary, the same shall also be complied with. 30. Penalties: (1) Omitted by the First Amendment.

Any person who obstructs, opposes or creates a disturbance during the acquisition of land under Section 14 Omitted by the First Amendment. or during the posting of any notice under this Act shall be liable to imprisonment for up to three months or a fine of up to Amended by the Second Amendment. two thousand rupees, or both. Amended by the Second Amendment.(2) Any person who uproots or cuts trees planted under Section 16, or operates a vehicle with excessive weight contrary to Section 16A, or obstructs or opposes the taking of soil, stone or sand under Section 17, or does any act contrary to Section 18, shall be liable to a fine of up to two thousand rupees. (3) Any person who does any act contrary to Sub-section (1) of Section 19, or obstructs or opposes the Road Department in carrying out any work under Sub-section (3) of the same section, shall be liable to imprisonment for up to one year or a fine of up to Amended by the Second Amendment. five thousand rupees, or both. Added by the Second Amendment.30A. Investigation and Diary of Cases: The investigation of cases relating to offenses punishable under this Act shall be conducted by an employee of at least the class of non-gazetted first class officer. After the completion of such investigation, the head of the concerned office of the Road Department shall file the case before the Road Department or the authority specified under Section 31. 31. Authority for Proceedings and Appeal Thereagainst: Amended by the First Amendment. (1) The authority to take proceedings and impose punishment for the offense of obstructing or opposing acquisition of land for the purpose of Section 14, cutting or uprooting trees planted under Section 16, obstructing or opposing the taking of soil, stone or sand under Section 17, placing, throwing, fixing, building, or hanging any goods so as to obstruct traffic on a public road contrary to Section 18, and doing any work within the public road or road boundary contrary to Section 19, shall vest in the Amended by the Second Amendment. Road Department or the authority designated by the Government of Nepal by notification published in the Nepal Gazette.

Added by the Second Amendment.(2) While taking proceedings under Sub-section (1), the Road Department or the designated authority may exercise the same powers as a District Court under the prevailing law. (3) A person aggrieved by an order of punishment made by the Amended by the Second Amendment. Road Department or the designated authority under Sub-section (1) may, within thirty-five days, appeal to the Amended by the Some Nepal Acts Amendment Act, 2072. High Court. 32. Delegation of Powers: The Government of Nepal may delegate all or any of the powers conferred on the Road Department under this Act to any authority. 33. Power to Make Rules: (1) The Government of Nepal may make rules to carry out the objectives of this Act. (2) Without prejudice to the generality of the power conferred by Sub-section (1), the rules may, in particular, make provision for the following matters:- (a) Omitted by the First Amendment. (b)

Omitted by the First Amendment. (c) The basis for determining compensation for damage to crops, trees, plants and other things, (d) Omitted by the First Amendment. (e) Conditions to be observed when constructing or placing anything opening or projecting towards the public road, (f) Conditions to be observed when constructing any door or path on the left or right of the public road, (g) Matters to be observed when constructing or erecting any type of house, wall, drain, path, pillar, pole, etc., within the road boundary or on the edge thereof, (h) Specifying the height and manner of placing wires or other similar things over or on the edge of the public road or road boundary, (i) Procedure to be followed when constructing any drain or laying pipes or wires across or from the public road or road boundary, (j) Duties of a person doing any work on a public road in a manner that obstructs traffic and other conditions to be observed by him. 34. Repeal and its Effect: (1) The Highway (Construction Arrangement) Act, 2021 (1964) and the rules made under that Act are hereby repealed. (2) If, at the time this Act comes into force, any compensation for land acquired under the Highway (Construction Arrangement) Act, 2021 (1964) remains to be paid, such compensation shall be paid according to that Act.